SWANDEV (Pvt) Ltd
versus
MARONDERA MUNICIPALITY

HIGH COURT OF ZIMBAWE
MAMBARA J
HARARE 4 and 9 February 2026

Application for an Interdict

G. R.J Sithole, for the applicant
G. Ranganayi, for the respondent

MAMBARA J:

[1] This is an opposed application for a final interdict. The applicant, Swandev (Pvt) Ltd, seeks to restrain the respondent, Marondera Municipality, from unlawfully selling or allocating residential stands on the applicant's land. The land in question is the Remainder of Lot 1 of Elmswood Farm in Marondera, measuring 866.220 hectares, which the applicant avers it owns by virtue of a registered deed of transfer. The applicant produced a copy of its title deed reflecting its ownership of the property, as well as a letter dated 2015 from the Minister of State for Mashonaland East confirming that the property belongs to the applicant. On the strength of these, the applicant asserts a clear right of ownership over the land.

[2] The respondent is the local authority for Marondera. Its officials have been advertising and selling residential stands on the applicant's land without the applicant's consent. The applicant complains that this conduct not only infringes its property rights but also exposes it to potential litigation from third parties who are being misled into purchasing stands on land that the applicant owns. It is common cause that the respondent has no joint venture or agreement with the applicant for development of this land; its actions have been unilateral. The applicant therefore seeks a prohibitory interdict to stop the respondent's activities on the land, contending that it has no other remedy to protect its rights.

[3] In opposition, the respondent claims that the land in question was acquired by the State and that the respondent received an "offer letter" from central government for urban expansion onto this land. The respondent, however, did not produce any Government Gazette

notice or other proof that the property was legally acquired by the State under the Land Acquisition Act or the Constitution. It also did not tender any title deed or copy of a deed in its name or in the name of the State. Its position rests solely on the offer letter and the assertion that the land now belongs to the State and was allocated to the Municipality. Apart from that, the respondent placed reliance on a Council resolution dated 16 January 2024, which it says granted *blanket authority* to the Town Clerk to act in all legal matters on behalf of the Municipality. The respondent attached this resolution to its opposing papers in order to establish that its Town Clerk (who deposed to the opposing affidavit) was duly authorized.

Preliminary Points

[4] Both parties raised preliminary points *in limine*. The respondent raised three objections in limine: (i) *lis alibi pendens* – arguing that another case involving the same subject matter was pending; (ii) non-joinder – arguing that certain government Ministries should have been cited as parties; and (iii) a challenge to the validity of the applicant's title – suggesting that the applicant's deed is no longer valid since the land was allegedly acquired by the State. In turn, the applicant raised a preliminary point contesting the respondent's authority to oppose the application – essentially arguing that the Town Clerk's opposing affidavit was not backed by a valid resolution specific to this case. It is convenient to address these points before turning to the merits.

Applicant's Point *in Limine*: Authority to Represent the Respondent

[5] The applicant contended that the respondent's Town Clerk had no authority to represent the Municipality in these proceedings because the council resolution produced was a general or "blanket" resolution not specific to this lawsuit. The legal position is that a company or corporate body (including a municipality) can only litigate through authorized agents. When challenged, the entity must show that the person purporting to act has been properly authorized, typically by a resolution of its board or governing body. As the Supreme Court stated in *Dube v Premier Service Medical Aid Society & Anor* SC 73/19, a mere assertion of authority by virtue of one's position is not enough – *"He must produce a resolution of the board … confirming that the board is aware of the proceedings and that it has given such person the authority to act …"*. Likewise, in *Madzivire & Ors* v *Zvarivadza & Ors* 2006 (1) ZLR 514 (S) (SC 10/06), CHEDA AJA emphasized that a managing director (or official) is not

automatically clothed with authority to sue or defend on behalf of a company without the requisite resolution: *"The fact that a person is a managing director of a company does not clothe him with authority to sue on behalf of the company in the absence of a resolution authorising him to do so…"*. These principles apply to municipal corporations as well.

[6] In casu, the respondent did produce a written Council resolution dated 16 January 2024. That resolution delegates to the Town Clerk general authority to "represent Council in all legal matters and to sign all necessary court documents" on the Council's behalf. The applicant's criticism was that the resolution is too broad and does not specifically mention this particular lawsuit. It is true that best practice is for a resolution to identify the specific litigation in question. However, I am satisfied that the resolution produced here substantially complies with the requirement. It emanated from a full Council meeting and makes it clear that the Town Clerk is empowered to handle legal proceedings for the Municipality. The fact that it is framed in general terms does not negate its effect in this case – the Council, by passing that resolution, unequivocally signaled that the Town Clerk can act for the Municipality in court. There is no allegation that the resolution is a forgery or that it was improperly passed; it is a bona fide resolution under the Council's seal. In my view, that suffices to establish the Town Clerk's authority. The applicant's point in limine on this issue is therefore not upheld. The respondent's opposition is properly before the court.

Respondent's Points *in Limine*

(a) *Lis Alibi Pendens*

[7] The first objection raised by the respondent was *lis alibi pendens* – the plea of pending litigation. The respondent averred that there was another case pending between the same parties over the same subject matter, and that this application should be stayed or dismissed on that basis. In response the applicant submitted that the matter was deemed abandoned in terms of the High Court Rules, 2021. I agree with this position and I therefore dismiss the point in limine

(b) Non-Joinder of Ministries

[8] The second objection was that of non-joinder. The respondent argued that the applicant ought to have cited certain government entities – in particular the Ministry responsible for

land acquisition (Ministry of Lands, Agriculture, Fisheries, Water and Rural Development) and/or the Ministry of Local Government and Public Works – since the respondent's claim to an offer letter emanates from or involves those Ministries. The legal test for necessary joinder is whether the party not cited has a *direct and substantial interest* in the subject matter of the case, that is, an interest in the right which is the subject of the litigation and not merely a financial or peripheral interest. It is trite that non-joinder of a potentially interested party is not fatal to proceedings; Rule 32(11) of the High Court Rules, 2021 expressly provides that no cause or matter shall be defeated by reason of the non-joinder of any party, and the court may deal with the matter in dispute among the parties actually before it. If a party believes a third-party ought to be joined, that party itself can apply for joinder under r 32 at any stage of the proceedings.

[9] In the present case, no relief is sought *against* the Ministries in question, nor would any order I make directly affect any rights of those Ministries. The application is focused on the allegedly unlawful conduct of the respondent in selling the applicant's land. That dispute can be fully determined between the applicant and the Municipality without the presence of the Ministries. The Ministries have no direct and substantial interest in an order interdicting the Municipality from selling land that it does not own – such an order does not require the Ministries to do or refrain from doing anything. This situation is analogous to that in *Brian Andrew Cawood* v *Elasto Madzingira & Ors* HH 12-17, where an objection for non-joinder of the Ministry of Lands was dismissed. In that case, MAFUSIRE J reasoned that the matter before him concerned the conduct of the parties cited (a Messenger of Court acting on behalf of a private party), and although there was a tangential reference to a Lands Officer, nothing was being claimed against the Ministry of Lands itself; the dispute was between the parties before me and could be resolved without dragging in the Ministry whose role was merely peripheral. The same logic applies here. If the respondent believed that the Ministries had a legal interest so direct as to be affected by the relief, the onus was on the respondent to apply to join them. It did not do so. In line with the authorities and Rule 87, the non-joinder of the Ministries does not render this application fatally defective. The point in limine on non-joinder is therefore without merit and is dismissed.

(c) Challenge to the Validity of Applicant's Title

[10] The third point in limine advanced by the respondent was a challenge to the validity of the applicant's title deed. The respondent contended that the applicant's registered title has been superseded or invalidated because the farm in question was compulsorily acquired by the State. However, as noted earlier, the respondent has not produced any evidence of a lawful acquisition. There is no gazetted acquisition notice, no proof that the property was listed under any acquisition schedule, and no court order to that effect. The respondent's claim rests solely on an "offer letter" it received for urban expansion. In our law, the mere issuance of an offer letter does not prove that a valid acquisition has occurred. The Supreme Court in *Commercial Farmers Union & Ors* v *Minister of Lands & Ors* SC 31/10 (26 Nov 2010) explained the scheme of land acquisition and allocation under the Constitution: the acquiring authority (the Minister of Lands) must lawfully acquire the land (typically by publication in the Gazette and following the procedures in Section 16B of the former Constitution or the relevant provisions of the current Constitution), and *only after such acquisition* does title vest in the State, enabling the Minister to allocate the land to others. An offer letter is simply one of the methods by which the State can allocate *already-acquired* land to a beneficiary. Crucially, if the land has not been lawfully acquired in the first place, an offer letter is of no legal force. As CHIDYAUSIKU CJ observed, a letter from an official (even a Vice President or other member of the Executive) is *not* "lawful authority" to occupy land in terms of the Gazetted Lands (Consequential Provisions) Act unless it falls into one of the recognized categories (offer letter, permit or lease) and is issued pursuant to an actual acquisition.

[11] In the present case, the respondent's position is fatally undermined by the absence of proof that the State ever acquired the applicant's farm. The applicant's Deed of Transfer remains extant on the Deeds Register, and under our law a registered title deed is prima facie evidence of ownership of the property by the holder of the deed. That real right of ownership is not lightly displaced. It can be abrogated only by due process of law – for example, a lawful compulsory acquisition followed by transfer to the State, or a court order nullifying the title. The respondent has shown no such process. Its unsubstantiated claim that "the land was acquired" is not enough. In fact, by attempting to sell stands, the respondent is implicitly acknowledging that no formal transfer to the State has occurred (since if the land were truly State land, one would expect the State to be directly involved or for the title to have been formally cancelled). The court must therefore accept that the applicant's title is still valid and

legally operative. The Title Deed creates a presumption of ownership in favour of the applicant, and the respondent has not rebutted that presumption. I conclude that the applicant is the lawful owner of the Remainder of Lot 1 of Elmswood Farm and that the respondent has no lawful rights over that land. Accordingly, the respondent's point *in limine* challenging the applicant's title and by extension its locus standi is dismissed. The applicant's title deed remains the best evidence of ownership and entitles the applicant to seek protection of its rights.

Merits of the Application

[12] Having disposed of the preliminary issues, I turn to the substance of the case. This is an application for a final interdict. The requirements for a final interdict are well-established in our law and were famously enunciated in *Setlogelo v Setlogelo* 1914 AD 221 at 227. The applicant must establish: (1) a clear right on a balance of probabilities; (2) an injury actually committed or a well-grounded apprehension of irreparable harm; and (3) the absence of any other adequate remedy at law. These requirements have been restated in numerous Zimbabwean cases – see e.g. *Flame Lily Investments Co (Pvt) Ltd* v *Zimbabwe Salvage (Pvt) Ltd & Anor* 1980 ZLR 378 (HC); *Tribac (Pvt) Ltd v Tobacco Marketing Board* 1996 (2) ZLR 52 (S); *Boadi* v *Boadi* 1992 (2) ZLR 378 (S), among others – and they remain the guiding criteria. Unlike an interim interdict, a final interdict requires a clear right (not merely a prima facie right) and once those three elements are proved, the court, in the ordinary course, grants the relief as a matter of judicial discretion to protect the right. I now assess whether the applicant has met these elements.

Clear Right

[13] The applicant has demonstrated a clear right of ownership in the property. Ownership of land is a most fundamental right, protected both at common law and by Section 71 of the Constitution of Zimbabwe (which safeguards property rights). By virtue of its registered title, the applicant enjoys *dominium* over the farm, which includes the right to exclude others from the property and to refuse any unconsented sale or allocation of portions thereof. The respondent's actions – advertising and selling plots on the applicant's land – plainly interfere with the applicant's right as owner. The respondent has no lawful authority to carve up and

dispose of land it does not own. Therefore, the applicant's right is not only clear; it is being actively infringed by the respondent. The first requirement for an interdict is thus satisfied.

Injury or Reasonable Apprehension of Harm

[14] The applicant must show either that an injury has already been committed or that there is a reasonable apprehension of harm if the interdict is not granted. In this case, the harm to the applicant is both actual and prospective. It is actual in the sense that the respondent has already begun parcelling out the land and entering into sale agreements with third parties – a blatant invasion of the applicant's rights. It is prospective in the sense that if not stopped, the respondent's conduct will *multiply* the applicant's woes: more stands will be sold, third parties will part with money and may attempt to take occupation or even develop the stands, and the applicant will be faced with a litany of lawsuits or disputes to recover its land or respond to claims for transfer. The situation is a recipe for chaos and irreparable harm. The applicant justifiably fears that it could lose control of the land and be dragged into numerous legal battles, thereby suffering harm that cannot readily be undone. Our courts have held that the apprehension of harm must be reasonable – it must be a fear founded on facts, not a mere speculation. Here, the fear is well-grounded: stands have already been sold; it is reasonable to expect buyers to assert their supposed rights, perhaps even by occupying the land. Furthermore, the value and utility of the land to the applicant is being eroded; each purported sale chips away at its property. Monetary compensation after the fact would not adequately remedy the breach of the applicant's real right, especially considering the unique nature of real property and the potential multiple claimants involved. I am satisfied that the applicant faces a real and substantial threat of harm if the respondent is not interdicted. Indeed, the harm is ongoing and escalating, which underscores the need for immediate relief.

Absence of Alternative Remedy

[15] The applicant must also show that there is no other ordinary remedy available that could reasonably afford it the protection it seeks. In this regard, I accept that the applicant has no alternative remedy. The respondent's conduct is extra-legal – it is not something sanctioned by any court or statute that the applicant could challenge through a simpler mechanism. The applicant cannot, for instance, appeal to some administrative body to stop the Municipality; nor would an award of damages be adequate. Damages (even if the applicant later sued the

Municipality for any loss) would not cure the core problem, which is that the applicant's land is being improperly dealt with. In *Setlogelo*, INNES JA noted that the existence of another ordinary remedy, capable of affording similar protection, would bar an interdict. Here, there is no "similar protection" available to the applicant besides an interdict. Only a prohibitory interdict can decisively halt the respondent's unlawful sales and prevent the proliferation of conflicts. Self-help is not an option for the applicant; it rightly turned to the courts for relief. I also note that the respondent, in argument, suggested no alternative remedy that the applicant should be pursuing. This requirement is therefore met.

[16] All the requisites of a final interdict have thus been established by the applicant. The applicant has a clear right, which is being unlawfully violated. There is a well-grounded apprehension of irreparable harm if the interdict is not granted, and there is no other remedy capable of protecting the applicant's interests. In such circumstances, the court is empowered to grant a final interdict to vindicate the rule of law and prevent ongoing illegality (*Setlogelo* v *Setlogelo*, supra).

[17] The balance of equities in fact overwhelmingly favours the granting of relief: the applicant stands to suffer grave prejudice if the interdict is denied (loss of its land or a deluge of litigation and disputes), whereas the respondent will suffer no legitimate prejudice from an interdict because it has no lawful right to sell the land in the first place. One cannot be heard to complain of prejudice from being stopped from acting unlawfully. On the contrary, an interdict will serve to maintain law and order, by ensuring that land dealings occur within the confines of the law – either by agreement with the owner or following lawful acquisition processes, not by unilateral grabs.

[18] It is worth noting that this court's intervention in scenarios of this nature is not unprecedented. Our courts have consistently granted relief to private landowners facing encroachment by authorities or third parties without lawful right. For instance, in *Arosume Property Development (Pvt) Ltd* v *Mashonganyika & Ors* HH 143/25, the High Court dealt with a dispute over a title deed that was being cancelled in the context of a government-private partnership development. While that case involved a joinder application, it underscored the principle that a holder of a valid title must be given an opportunity to protect its rights in court rather than being sidelined. In *Paul Mgodi* v *Duweni Kutepa & Chirundu Local Board* HH 259/23, a private developer obtained an interdict against a local board that

had purported to allocate the developer's land to third parties. These cases, among others, reflect the judiciary's vigilant role in protecting property rights and censuring lawless conduct by those who assume powers they do not have.

[19] The respondent in the present matter is a public body that ought to lead by example in upholding the law. It is unfortunate that it chose to proceed in the manner it did. The court must state clearly that *urban expansion or development, however desirable in general, must be done legally*. If the State wishes to acquire land for urban development, it must follow the constitutionally mandated processes and pay any requisite compensation. Short of that, a municipality has no right to help itself to a private party's land. The courts will grant relief to prevent such an abuse of power or trust.

[20] For these reasons, the applicant is entitled to the interdict it seeks. The final relief sought by the applicant as set out in its draft order is precisely tailored to the circumstances: it aims to stop the respondent's unlawful conduct and nothing more. There is no overreach in the relief.

Costs

[21] The general rule is that costs follow the result. The applicant has succeeded and I see no reason to depart from that rule. The respondent's conduct, frankly, was reprehensible in that it attempted to dispose of another's property without colour of right. The applicant has had to incur legal expense to protect what should never have been threatened. In the exercise of my discretion, I will award the applicant its costs. The applicant specifically ask for punitive costs in the papers, and I will therefore award those costs.

[22] Disposition:

In the result, the application for a final interdict is granted.

Accordingly, it is ordered as follows:

1. The respondent Marondera Municipality be and is hereby interdicted from offering for sale, selling, parcelling out, allocating, advertising, interfering with the servicing or in any way disposing of or alienating any residential stands or any portion of the

property known as the Remainder of Lot 1 of Elmswood Farm, Marondera measuring 866.220 hectares.

2. The respondent shall pay the costs of suit on the scale of legal practitioner and client scale.

MAMBARA J:…….

Mabundu & Ndlovu Law Chambers, applicant's legal practitioners
IEG Musimbe & Partners, respondent's legal practitioners